THE NATIONAL COMPANY LAW TRIBUNAL
BENCH V
AT NEW DELHI

CP (CAA)-127/230/232/ND/2021

Under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF:

SCHEME OF AMALGAMATION

OF

AMRIT GOLD INTRADE PRIVATE LIMITED

...(Transferor Company 1/ Applicant No 1)

AND

OMA INTERNATIONAL PRIVATE LIMITED

...(Transferor Company 2/ Applicant No 2)

AND

Z2A STUDY MATERIAL PRIVATE LIMITED

...(Transferor Company 3/ Applicant No 3)

WITH

SPICE INFOTECH LIMITED

...(Transferee Company/ Applicant No 4)

Order Reserved On: 04.01.2022

Order pronouncedon: 24.01.2022

CORAM:

SH. ABNI RANJAN KUMAR SINHA,HON'BLE MEMBER(J)

SH. AVINASH K. SRIVASTAVA,HON'BLE MEMBER (T)

PRESENT

For the Applicant :Adv Vishnu, FCS Avinash Kaur, PCA
Abhishek Nahta, Adv. Rishabh Sachdeva,

MEMO Of PARTIES

In the Matter of Companies Act, 2013
Section 230 to 232
AND
In the Matter of:

AMRIT GOLD INTRADE PRIVATE LIMITED
Company incorporated under the Companies Act, 1956
Having Registered Office at 405-C, Fourth Floor,
Sky Larg 60 Nehru Place, Near Tara Cinema,
New Delhi-110019
CIN: U51109DL2006PTC349743

(Transferor Company 1/ Applicant No 1)

AND

OMA INTERNATIONAL PRIVATE LIMITED
Company incorporated under the Companies Act, 1956
Having Registered Office at 41 E-S 505, School Block
Shakurpur, Delhi-110092
CIN: U18101DL2009PTC196723

(Transferor Company 2/ Applicant No 2)

AND

Z2A STUDY MATERIAL PRIVATE LIMITED
Company incorporated under the Companies Act, 1956
having its Registered Office at S 505, First Floor,
I-E School Block, Shakurpur, Delhi-110092
CIN: U22211DL20139PTC255840

(Transferor Company 3/ Applicant No 3)

AND

SPICE INFOTECH LIMITED
Company incorporated under the Companies Act, 1956
Having its registered office at C/o Sh. Ashok Kumar Manglik
S-505 Flat No. 2F S/F School BLK Shakurpur
Near Manukamna Mandir, New Delhi 110092
CIN: U72200DL2005PLC139992

(Transferee Company / Applicant No 4)

ORDER

PER SH. AVINASH K. SRIVASTAVA, MEMBER (TECHNICAL)

1. This Company Petition jointly filed by the Applicant Companies is coming before us for admission, fixing a date for hearing and final disposal of the Application as well as for a direction for publication and issuance of notices to the concerned authorities for objections, if any, to the Composite Scheme of Arrangement (hereinafter, referred to as the "SCHEME") contemplated between the Applicants, which will take effect from the Appointed Date of April 01.04.2020
2. As per the averments, the Registered offices of all the Applicant Companies are located in Delhi and hence, falling within the territorial jurisdiction of this Bench.
3. From the case records, it is seen that the First Motion seeking direction for dispensing with the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors was filed before this Tribunal in CA (CAA)-55/ND 2021 under sections 230-232 of the Companies Act, 2013 and vide order dated 22.12.2021 directions were issued to dispense with the convening and holding of the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies.
4. The prayers in this Petition by way of Second Motion are for fixing a date of hearing as well as other consequential directions in terms of the provisions of the Section 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016. It is now hereby ordered as follows:
   i. **The Petition stands Admitted.**
   ii. **The date of hearing of the Petition** led by the Applicant Companies for approval of the Scheme is **fixed for 21.03.2022.**

iii. **Notice of the hearing shall be published in the newspapers** namely, Business Standard" in English and "Business Standard" in Hindi (Delhi edition) in not less than 40 days before aforesaid date fixed for hearing.

5. In addition to the publication of the above Public Notice, the Applicant Companies shall individually serve the notices of this Petition to the following Authorities, namely:

(A) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs,

(B) Ministry of Corporate Affairs, (Official Liquidator, Delhi,

(C) Registrar of Companies, NCT of Delhi & Haryana,

(D) The Jurisdictional Income Tax Authorities,

(E) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in theScheme

at least 40 days before the date fixed for hearing of this Petition.

6. That the Applicant Companies shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to the Newspaper publication effected as well as service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

7. Objections, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed to the "SCHEME" contemplated by the Applicant Companies, failing which it. will be considered by this Tribunal that there is no objection to approval of the "SCHEME" on the part of the Authorities, subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed there under being satisfied.

Sd/- 24/1/22

AVINASH K. SRIVASTAVA
MEMBER (TECHNICAL)

Sd/-

ABNI RANJAN KUMAR SINHA
MEMBER(JUDICIAL)